Matter 29 Discovery Deployment Plan

Case No. 4:26-cv-09249-ASK · Hon. Ajay S. Krishnan · DRAFT — NOT FILED OR SERVED

Status — drafts not served or filed

This packet consists of six written discovery sets, a Rule 26(f) ESI discussion proposal, two held Rule 30(b)(6) outlines, and separate delivery/service records. All six sets are unsigned; none has been delivered or served by preparation or repository storage of this packet.

Matter and planning dates

N.D. Cal. 4:26-cv-09249-ASK; Judge Ajay S. Krishnan. The Matter 29 portfolio calendar lists November 10, 2026 as the Rule 26(f) meet-and-confer and ADR certification target; November 24 for initial disclosures and the joint CMC statement; and December 1 for the initial CMC. Confirm the actual conference date and any superseding orders before deployment.

Deployment sequence

1. Confirm operative docket caption and the name Plaintiff will use for his signature. The operative caption currently uses BRENDAN NGEHSI NEWANFORBI. Signature lines use Brendan Ngwa Nforbi, as requested. Update all sets consistently if a conforming order changes the caption.

2. Complete, sign, and date the two RFP sets in accordance with Rule 26(g). Deliver early under Rule 26(d)(2) if the timing and applicable orders permit. Record **DELIVERY**, not service. Properly delivered early requests are deemed **SERVED** at the first actual Rule 26(f) conference.

3. Use the ESI proposal to confer on repositories, native formats, retention, confidentiality, time zones, and production dates. Request a crosswalk between Amazon's and Accurate's identifiers for the same screening order.

4. At or after the Rule 26(f) conference, sign and serve the interrogatory and admission sets separately under Rules 33 and 36. Early-delivery treatment under Rule 26(d)(2) does not apply to interrogatories or RFAs.

5. Confirm that email service is expressly agreed or otherwise legally authorized. ECF notice of a filed document does not replace valid service of unfiled discovery. Keep timestamped delivery/service evidence.

6. Provide editable Word copies alongside PDFs, consistent with Judge Krishnan's standing order. Discovery is generally served on counsel rather than filed unless directed or needed in a discovery dispute.

7. Audit the initial responses and productions, issue focused deficiency correspondence, meet and confer in real time, and use the court-directed joint discovery-letter procedure when appropriate. Do not serve the held Rule 30(b)(6) outlines without setting appropriate logistics and refining topics.

Counsel routing — verify counsel of record and service consent

Amazon: Andrew P. Frederick, Morgan Lewis, andrew.frederick@morganlewis.com, plus any designated service counsel.

Accurate: John Drury, JDrury@seyfarth.com; Jasmine J. Stanzick, jstanzick@seyfarth.com; and any designated service counsel.

Response timing

Rule 34 responses ordinarily are due 30 days after service, or 30 days after the first Rule 26(f) conference for properly delivered early requests. Rules 33 and 36 ordinarily permit 30 days after service. A stipulation

or court order may change timing. If the first conference is November 10 and no altered period applies, December 10, 2026 is an illustrative early-RFP response date.

High-impact record targets

Amazon: RFPs A-02, A-04, A-05, A-06 and A-08.

Accurate: RFPs B-02, B-03, B-05, B-09 and B-12.

Cross-reference exact status changes, report versions, transmission and access logs, original applicant data, and the Santa Clara criminal-component timeline before considering amendments or depositions.

Review flags before sending

- Do not serve held deposition outlines as notices. Date, location, appearance platform, and recording methods remain open.
- Evaluate whether the November 15 upper date for some requests should be adjusted or supplemented for newly created responsive materials.
- Keep the October 14 preservation and consumer file requests distinct from formal Rule 34 discovery.
- Verify court source material before asserting that a criminal disposition date, parole status, or recorded conviction answer is inaccurate.
- Do not give opposing counsel control over Plaintiff's signature. Signature lines remain blank for Plaintiff's review and execution.

Governing references

Fed. R. Civ. P. 26(d)(2), 26(g), 26(b)(1), 30(b)(6), 33, 34, and 36; N.D. Cal. Civil Local Rules effective October 2, 2026; Judge Krishnan's August 20, 2026 standing order; N.D. Cal. ESI Guidelines.

This is a working deployment checklist, not an executed stipulation, notice, discovery service, or court filing.

UNITED STATES DISTRICT COURT — NORTHERN DISTRICT OF CALIFORNIA, OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC and ACCURATE BACKGROUND, LLC, Defendants.

Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Requests for Production to Amazon.com Services, LLC

DRAFT — NOT FILED OR SERVED

Under Fed. R. Civ. P. 26 and 34, Plaintiff requests the documents below. If delivered under Rule 26(d)(2) before the Rule 26(f) conference, deemed service occurs at the first actual conference.

Definitions and instructions

1. "Plaintiff" means the plaintiff in this action under the names and name variants used in the relevant hiring and screening records. "You" means the responding defendant and responsive personnel, agents, repositories, and systems in its possession, custody, or control.

2. "Application" means Plaintiff's 2026 Seasonal XL Warehouse Associate application at Amazon's Fremont facility. "Screening Order" means Accurate reference 496623722 and related component search IDs.

3. "Document" includes electronically stored information, messages, emails, portal entries, application and screening records, audit logs, metadata, and native exports within Rule 34.

4. Unless a particular request provides otherwise, the period is July 1–November 15, 2026, and the requests concern Plaintiff's application and screening. Policies need only be produced in versions operative at relevant times.

5. Preserve original timestamps, time zones, event IDs, meaningful metadata, report versions, account identifiers, and attachments. Produce structured records in reasonably usable CSV/JSON/native exports with data dictionaries; do not substitute screenshots where native data is available.

6. For any objection, identify its specific basis and whether material is withheld; produce nonprivileged portions and log privileged withholdings as required by Rule 26(b)(5). Produce within the applicable Rule 34 deadline unless otherwise agreed or ordered.

Requests for Production

REQUEST FOR PRODUCTION NO. 01. Produce the complete application and candidate profile for Plaintiff’s 2026 Seasonal XL Warehouse Associate position at the Fremont, California facility, including original entries, submitted answers, revisions, audit history, field-level timestamps, applicant account identifiers, and the native or structured export of the application data.

REQUEST FOR PRODUCTION NO. 02. Produce all event histories, status-change records, audit trails, and records of actor or automated-service identity from Simple Hire and any applicant tracking, recruiting, or workforce staffing system concerning Plaintiff’s July 2026 application, including the state of each onboarding checklist item and each change to a background-check or shift status.

REQUEST FOR PRODUCTION NO. 03. Produce Plaintiff’s July 2026 offer and related scheduling records, including the July 28 training/start assignment, seat or capacity reservation, modifications, deletion or release of that assignment, and records of any available or offered replacement shift through October 31, 2026.

REQUEST FOR PRODUCTION NO. 04. Produce all reason codes, disposition codes, comments, decision records, event triggers, approval or override records, and supporting data for any change that removed Plaintiff's confirmed training shift or changed Plaintiff's application from July 3 through October 31, 2026.

REQUEST FOR PRODUCTION NO. 05. Produce nonprivileged communications, messages, case notes, technical tickets, and attachments exchanged in the ordinary course of business between Amazon and Accurate concerning Plaintiff or screening order 496623722, from July 1 through November 15, 2026.

REQUEST FOR PRODUCTION NO. 06. Produce every consumer-report version, preliminary finding, component result, status flag, adjudication indicator, eligibility designation, alert, or related screening communication concerning Plaintiff that Amazon received, viewed, downloaded, or could access in an Accurate system from July 7 through November 15, 2026.

REQUEST FOR PRODUCTION NO. 07. Produce logs showing transmission, receipt, retrieval, display, viewing, download, API delivery, or modification of screening information for Plaintiff, identifying timestamps, system events, relevant user or service-account identifiers, and report or result version IDs.

REQUEST FOR PRODUCTION NO. 08. Produce the data and messages by which Amazon supplied or modified Plaintiff's name, aliases, date-of-birth fields, address history, prior-conviction responses, or other identity data for screening order 496623722, including the origin and timestamp of any value resembling "NEWANSORBI."

REQUEST FOR PRODUCTION NO. 09. Produce the employment-background-check disclosure and authorization records for Plaintiff and all proposed, generated, queued, delivered, failed, or suppressed pre-adverse-action and adverse-action notices, summaries of rights, copies of reports, associated delivery logs, and workflow records through November 15, 2026.

REQUEST FOR PRODUCTION NO. 10. Produce any individualized assessment, conviction-history review worksheet, preliminary or final decision record, written notice, response opportunity, reconsideration record, or automated substitute for such an assessment relating to Plaintiff's application.

REQUEST FOR PRODUCTION NO. 11. Produce support tickets, exception queues, identity-reverification requests, hold records, review notes, escalations, and ordinary-course communications concerning delays or processing exceptions in Plaintiff's screening, including referrals to Accurate.

REQUEST FOR PRODUCTION NO. 12. Produce nonprivileged emails, chat messages, staffing notes, or internal communications by employees who handled Plaintiff's application concerning the screening status, training assignment, eligibility, cancellation, or rescheduling, from July 1 through October 31, 2026.

REQUEST FOR PRODUCTION NO. 13. Produce versions of the written policies, operating instructions, and training materials in force for the Fremont Seasonal XL position during July–August 2026 governing background checks that remain pending when a confirmed training or start date arrives, including shift cancellation, expiration, reassignment, and rescheduling.

REQUEST FOR PRODUCTION NO. 14. Produce versions in force during July–October 2026 of the screening eligibility criteria, review or escalation rules, automated status mappings, and authorization criteria applicable to Plaintiff's Seasonal XL position; limit any broader materials to the portions applicable to that hiring workflow.

REQUEST FOR PRODUCTION NO. 15. Produce the portions of Amazon's agreements, statements of work, screening-order configuration, and technical interface specifications with Accurate effective during July–October 2026 that define services, report delivery, decision-making responsibility, compliance duties, or notice generation for the applicable screening package.

REQUEST FOR PRODUCTION NO. 16. Produce certifications furnished by Amazon to Accurate for screening order 496623722, or the applicable account-wide certifications in effect at that order's creation, concerning permissible purpose and compliance with federal and California employment-screening laws.

REQUEST FOR PRODUCTION NO. 17. Produce the July 2026 job posting and pay terms for the offered position, scheduled paid training hours, expected position duration and benefits, together with records sufficient to show whether an equivalent replacement training or start slot was offered to Plaintiff before October 31, 2026.

REQUEST FOR PRODUCTION NO. 18. Produce data dictionaries, status-code definitions, event-type mappings, report-version identifiers, and ordinary-course documentation necessary to interpret responsive system records produced in response to Requests Nos. 1–17.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

1455 Cat Tail Drive, Stockton, CA 95204 · (209) 801-4442 · bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT — NORTHERN DISTRICT OF CALIFORNIA, OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC and ACCURATE BACKGROUND, LLC, Defendants.

Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Requests for Production to Accurate Background, LLC

DRAFT — NOT FILED OR SERVED

Under Fed. R. Civ. P. 26 and 34, Plaintiff requests the documents below. If delivered under Rule 26(d)(2) before the Rule 26(f) conference, deemed service occurs at the first actual conference.

Definitions and instructions

1. "Plaintiff" means the plaintiff in this action under the names and name variants used in the relevant hiring and screening records. "You" means the responding defendant and responsive personnel, agents, repositories, and systems in its possession, custody, or control.

2. "Application" means Plaintiff's 2026 Seasonal XL Warehouse Associate application at Amazon's Fremont facility. "Screening Order" means Accurate reference 496623722 and related component search IDs.

3. "Document" includes electronically stored information, messages, emails, portal entries, application and screening records, audit logs, metadata, and native exports within Rule 34.

4. Unless a particular request provides otherwise, the period is July 1–November 15, 2026, and the requests concern Plaintiff's application and screening. Policies need only be produced in versions operative at relevant times.

5. Preserve original timestamps, time zones, event IDs, meaningful metadata, report versions, account identifiers, and attachments. Produce structured records in reasonably usable CSV/JSON/native exports with data dictionaries; do not substitute screenshots where native data is available.

6. For any objection, identify its specific basis and whether material is withheld; produce nonprivileged portions and log privileged withholdings as required by Rule 26(b)(5). Produce within the applicable Rule 34 deadline unless otherwise agreed or ordered.

Requests for Production

REQUEST FOR PRODUCTION NO. 01. Produce the complete native or structured order record and audit history for screening order 496623722, including creation, modifications, version IDs, system-status changes, source fields and timestamps.

REQUEST FOR PRODUCTION NO. 02. Produce every preliminary, interim, completed, corrected, updated, or amended version of the consumer report, each component result and supporting report-generation record for order 496623722, including versions before October 14, 2026, if any.

REQUEST FOR PRODUCTION NO. 03. Produce records of each furnishing, posting, transmission, API delivery, access, view or download of information from order 496623722 by Amazon or any related end user, including dates, timestamps, report/component version, recipient or account, and channel.

REQUEST FOR PRODUCTION NO. 04. Produce the original structured data, files, portal inputs and messages received from Amazon initiating or updating order 496623722, including all name, alias, address, identifying and application-question fields.

REQUEST FOR PRODUCTION NO. 05. Produce the creation, import, transformation, manual entry, correction and attribution audit trails for the value “NEWANSORBI” or “NGWA NFORBI, NEWANSORBI,” including the records that caused it to be labeled “Provided by Applicant.”

REQUEST FOR PRODUCTION NO. 06. Produce records identifying each name, alias and field order submitted to each search component of order 496623722, the identifiers used, search date and time, returned matches or no-match results, and any matching or exclusion decision.

REQUEST FOR PRODUCTION NO. 07. Produce the complete component record for National Sex Offender Database Search 496623723, including search parameters, source databases or vendors, timestamps, results, exceptions, review notes and instructions governing the “NO RECORD FOUND” output.

REQUEST FOR PRODUCTION NO. 08. Produce the policies, matching criteria, field-mapping specifications, name-normalization rules, and vendor specifications in effect on July 7, 2026, applicable to the National Sex Offender Database Search performed under Search ID 496623723.

REQUEST FOR PRODUCTION NO. 09. Produce the court-source records, request and retrieval logs, vendor results and supporting documents for the Santa Clara County criminal-history component associated with case C1761642 and order 496623722.

REQUEST FOR PRODUCTION NO. 10. Produce assignment, recheck, exception, escalation, court-runner and third-party vendor records concerning the Santa Clara County component from its July 7 order through its October 14 completion, including the stated reasons for its processing time.

REQUEST FOR PRODUCTION NO. 11. Produce component records, third-party vendor communications, search timestamps, exception logs and escalation records explaining the San Joaquin County component that was reported complete on or about September 3, 2026.

REQUEST FOR PRODUCTION NO. 12. Produce the October 13, 2026 package-review audit entries, review notes, approval or release records, reviewer identity or service account, and records explaining what results were available for review before the October 14 Santa Clara completion.

REQUEST FOR PRODUCTION NO. 13. Produce all ordinary-course case notes, internal tickets, manual-review notes, identity-verification exceptions, quality-control records and hold/escalation history for order 496623722 from July 7 through November 15, 2026.

REQUEST FOR PRODUCTION NO. 14. Produce the records and source metadata supporting the report’s disposition date, sentencing data and statement that Plaintiff was “CURRENTLY ON PAROLE,” including the date the status was last verified and any original court or public record used.

REQUEST FOR PRODUCTION NO. 15. Produce the original record and provenance of any “PREVIOUS CONVICTION QUESTION: NO” or “ANSWER: No” statement appearing in order 496623722, including the source, field mapping, original submitted value, and any later modification.

REQUEST FOR PRODUCTION NO. 16. Produce Amazon’s permissible-purpose and employment-law certifications applicable to order 496623722 and the parts of the account configuration, order instructions, or screening service agreement showing the scope of the package ordered and the respective compliance responsibilities.

REQUEST FOR PRODUCTION NO. 17. Produce the generation, content, version, dispatch and delivery or failure records for all FCRA, ICRAA, public-record and subject-notification notices concerning order 496623722, including October 14, 2026 notices, the [LINK]/[ENLACE] placeholder and any notification appearing to be sent in Amazon’s name.

REQUEST FOR PRODUCTION NO. 18. Produce the ordinary-course dispute-case file, intake logs, investigation activity logs, communications, findings, corrections, and status records concerning Plaintiff's October 14, 2026 dispute, reference 496623722, and service request 20261014-15421955, through the date of production.

REQUEST FOR PRODUCTION NO. 19. Produce nonprivileged business communications between Accurate and Amazon about Plaintiff's screening status, identity inputs, search results, exceptions or delivery, excluding post-litigation attorney-client communications and attorney work product.

REQUEST FOR PRODUCTION NO. 20. Produce data dictionaries, status-code explanations, component-to-package mappings, ordinary-course workflow documents, and report-generation or versioning rules necessary to interpret records produced under Requests Nos. 1–19.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

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UNITED STATES DISTRICT COURT — NORTHERN DISTRICT OF CALIFORNIA, OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC and ACCURATE BACKGROUND, LLC, Defendants.

Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Interrogatories to Amazon.com Services, LLC

DRAFT — NOT FILED OR SERVED

Pursuant to Fed. R. Civ. P. 33, answer each interrogatory separately and fully in writing under oath within the time allowed by Rule 33, including the identity of the person furnishing each answer. The relevant application and order are defined in the RFP Set One above.

INTERROGATORY NO. 01. Identify the specific reason reflected in Amazon's ordinary-course records for removal or expiration of Plaintiff's confirmed July 28, 2026 training assignment.

INTERROGATORY NO. 02. Identify the person, automated rule, or application service that executed the status change addressed in Interrogatory No. 1.

INTERROGATORY NO. 03. State the final disposition of Plaintiff's July 2026 Seasonal XL application and the effective date of that disposition.

INTERROGATORY NO. 04. Identify each category of information or status update received from Accurate concerning Plaintiff before July 28, 2026.

INTERROGATORY NO. 05. Identify each Amazon application, recruiting, screening or scheduling system that maintained substantive records concerning Plaintiff's July 2026 application.

INTERROGATORY NO. 06. State the recorded source of the value "NEWANSORBI" in any data Amazon supplied to Accurate for order 496623722, or state that Amazon has no record of supplying that value.

INTERROGATORY NO. 07. State whether conviction-history information or sex-offender-registry information was considered in deciding Plaintiff's eligibility for the Seasonal XL position, identifying which category if either was considered.

INTERROGATORY NO. 08. Identify the Amazon role or business unit responsible for determining whether and when to send pre-adverse-action and Fair Chance Act notices in connection with Plaintiff's application.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

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UNITED STATES DISTRICT COURT — NORTHERN DISTRICT OF CALIFORNIA, OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC and ACCURATE BACKGROUND, LLC, Defendants.

Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Interrogatories to Accurate Background, LLC

DRAFT — NOT FILED OR SERVED

Pursuant to Fed. R. Civ. P. 33, answer each interrogatory separately and fully in writing under oath within the time allowed by Rule 33, including the identity of the person furnishing each answer. Screening order 496623722 includes associated component IDs.

INTERROGATORY NO. 01. State the date and time at which Accurate first completed a consumer report for order 496623722, applying the definition of “completed” used by Accurate in its September 22, 2026 Answer.

INTERROGATORY NO. 02. Identify each date on which any part of order 496623722 or a result from that order was furnished or made accessible to Amazon before October 14, 2026.

INTERROGATORY NO. 03. Identify the original source of the text “NEWANSORBI” and explain the “Provided by Applicant” attribution in the October 14 report.

INTERROGATORY NO. 04. State the reason reflected in Accurate’s records for the Santa Clara County criminal-search component not being completed until October 14, 2026.

INTERROGATORY NO. 05. Identify the source database or database aggregator used for National Sex Offender Database Search 496623723 on July 7, 2026.

INTERROGATORY NO. 06. Identify the source and most recent verification date supporting the report statement that Plaintiff was “CURRENTLY ON PAROLE.”

INTERROGATORY NO. 07. Identify the person or automated process responsible for the October 13, 2026 package-review event in order 496623722.

INTERROGATORY NO. 08. State whether a reinvestigation was opened in response to Plaintiff’s October 14, 2026 dispute and state its opening date or, if none was opened, the recorded reason.

INTERROGATORY NO. 09. Identify the Amazon legal entity or account to which Accurate was authorized to furnish order 496623722 and the screen name shown for that account.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

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UNITED STATES DISTRICT COURT — NORTHERN DISTRICT OF CALIFORNIA, OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC and ACCURATE BACKGROUND, LLC, Defendants.

Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Requests for Admission to Amazon.com Services, LLC

DRAFT — NOT FILED OR SERVED

Under Fed. R. Civ. P. 36, admit or deny each statement specifically, or explain in detail why you cannot truthfully do so after reasonable inquiry. Respond within the applicable Rule 36 period.

REQUEST FOR ADMISSION NO. 01. Admit that Amazon extended Plaintiff a conditional offer for a Seasonal XL Warehouse Associate position at its Fremont, California location during July 2026.

REQUEST FOR ADMISSION NO. 02. Admit that Amazon requested a background screening of Plaintiff from Accurate for that position.

REQUEST FOR ADMISSION NO. 03. Admit that Amazon maintained electronic records of Plaintiff’s background-screening status during July 2026.

REQUEST FOR ADMISSION NO. 04. Admit that the applicant-facing Simple Hire system displayed no selected shift when Plaintiff viewed his checklist on July 27, 2026.

REQUEST FOR ADMISSION NO. 05. Admit that Amazon previously scheduled Plaintiff for training beginning July 28, 2026.

REQUEST FOR ADMISSION NO. 06. Admit that Amazon maintains system records capable of identifying changes to Plaintiff’s July 2026 training assignment.

REQUEST FOR ADMISSION NO. 07. Admit that Amazon did not deliver to Plaintiff, on or before July 27, 2026, a written pre-adverse-action notice attaching a copy of an Accurate consumer report concerning the July 2026 application.

REQUEST FOR ADMISSION NO. 08. Admit that Amazon’s July 2026 offer terms contemplated selection of a new start date or schedule if pre-employment requirements were not completed in time.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

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UNITED STATES DISTRICT COURT — NORTHERN DISTRICT OF CALIFORNIA, OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC and ACCURATE BACKGROUND, LLC, Defendants.

Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Requests for Admission to Accurate Background, LLC

DRAFT — NOT FILED OR SERVED

Under Fed. R. Civ. P. 36, admit or deny each statement specifically, or explain in detail why you cannot truthfully do so after reasonable inquiry. Respond within the applicable Rule 36 period.

REQUEST FOR ADMISSION NO. 01. Admit that Amazon requested background screening from Accurate concerning Plaintiff under order 496623722.

REQUEST FOR ADMISSION NO. 02. Admit that Accurate maintained electronic order records concerning screening reference 496623722.

REQUEST FOR ADMISSION NO. 03. Admit that the report updated October 14, 2026 contains a Santa Clara County criminal-history component concerning Plaintiff.

REQUEST FOR ADMISSION NO. 04. Admit that the report updated October 14, 2026 contains the text “NEWANSORBI” as a name or alias.

REQUEST FOR ADMISSION NO. 05. Admit that the report updated October 14, 2026 labels the “NEWANSORBI” entry “Provided by Applicant.”

REQUEST FOR ADMISSION NO. 06. Admit that National Sex Offender Database Search ID 496623723 is shown with a “NO RECORD FOUND” result in the report updated October 14, 2026.

REQUEST FOR ADMISSION NO. 07. Admit that the report bears an “updated on” date of October 14, 2026.

REQUEST FOR ADMISSION NO. 08. Admit that Accurate received Plaintiff’s written consumer dispute dated October 14, 2026 no later than October 15, 2026.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

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Rule 26(f) ESI Meet-and-Confer Proposal

DRAFT FOR CONFERENCE — NOT A STIPULATION. Case 4:26-cv-09249-ASK (N.D. Cal.), Hon. Ajay S. Krishnan.

Plaintiff proposes the following targeted electronic discovery protocol pursuant to Rule 26(f), the Northern District of California ESI Guidelines, and the Court's Civil Standing Order. No item below is binding absent agreement or order.

1. Systems, custodians, and scope

Amazon: Simple Hire; ATS/recruiting; workforce staffing and shift scheduling; background-screening integration; HR screening review; email and internal chat for assigned recruiters and reviewers.

Accurate: Order management; component vendor/court searches; identity matching; case management; report generation/distribution; dispute intake; applicant portal; relevant business email for order 496623722.

2. Preservation

Preserve nonprivileged responsive records and reasonably available historical versions from July 1, 2026 through final disposition of the screening and dispute. Preserve report/version IDs, field histories, actor IDs, status transitions, API messages, system and vendor event logs, attachments, template variants, and communications. Disclose auto-deletion cycles and any necessary targeted suspension of deletion.

3. ESI formats and metadata

- **Email:** Native EML/MSG with attachments, full headers, and available metadata.
- **Structured application and screening data:** CSV or JSON with field names, original timestamps, time zones, and record IDs.
- **PDFs:** Searchable copies and native originals when PDF conversion obscures significant properties.
- **Technical documentation:** Codebooks, event types, abbreviations, system identifiers, and report-version IDs.
- Explain each material source that cannot export in native or reasonably usable format.

4. Searches and transparency

Search by Plaintiff's relevant name variants and order 496623722, related component IDs, spelling “NEWANSORBI,” dates, and positions. For disputed gaps, identify repositories, search methods, time ranges, custodians, and retention limitations. Deduplicate exact copies while retaining distinct report versions and meaningful event differences.

5. Schedule and privilege

Propose first-wave Rule 34 responses within 30 days of the Rule 26(f) conference if delivered in advance under Rule 26(d)(2). Prefer rolling production for applicant-specific source records. Discuss dates for interim and final privilege logs under Rule 26(b)(5) and a possible FRE 502(d) order.

6. Confidentiality

Discuss using an appropriate Northern District protective order addressing identifiers, screening records, proprietary source-system details, and internal decision records. Confidentiality should not become an indefinite barrier to otherwise discoverable materials.

7. Early production priorities

- **Amazon:** Application input; July 27 shift-change record and reason; Accurate screening receipt, status, and notes.
- **Accurate:** All report versions; Santa Clara component logs; October 13 package review; October 14

notices; alias provenance; transmission logs.
- Obtain a common system-identifier crosswalk from both defendants.

8. Questions for the conference

1. What is the actual date of the first Rule 26(f) conference?
2. Which platform and secure transfer method will each defendant use?
3. Who are the system custodians and technical points of contact?
4. Will the parties adopt a preservation and ESI protocol?
5. Is a protective order necessary for particular information?
6. What is the initial production date and when will missing report versions be revisited?

DRAFT Rule 30(b)(6) Deposition Topics — Amazon.com Services, LLC

Case 4:26-cv-09249-ASK · HOLD — NOT A NOTICE OF DEPOSITION · NOT SERVED

The Plaintiff intends to notice a Rule 30(b)(6) deposition after targeted initial production. One or more designated persons should testify on matters described with reasonable particularity. Dates, times, location, recording method, and service are **not yet established**.

Proposed date: To be agreed. **Time:** To be agreed. **Platform/location:** To be agreed. **Recording:** Stenographic and any additional agreed lawful method.

Schedule A — Matters for examination

1. Amazon's systems and terminology for Plaintiff's July 2026 application, onboarding, screening, and shift assignment.

2. The workflow, triggering event, decision maker or automated service, and recorded reason for disappearance of the July 28 training assignment.

3. Amazon's receipt, display, access, and business use of Accurate information for order 496623722, including preliminary results and status flags.

4. Names, aliases, prior-conviction answers, and other applicant data submitted by Amazon to Accurate and the transformation history.

5. Fair Chance Act assessment and conviction-based disqualification workflow for Plaintiff's application.

6. Preparation and delivery of pre-adverse and adverse-action notices concerning Plaintiff's screening.

7. Interpretation of produced status codes, decision codes, and material system events.

The topics should be refined after initial production and a reasonable conference on logistics. Do not transmit as an effective deposition notice in its current form.

DRAFT Rule 30(b)(6) Deposition Topics — Accurate Background, LLC

Case 4:26-cv-09249-ASK · HOLD — NOT A NOTICE OF DEPOSITION · NOT SERVED

The Plaintiff intends to notice a Rule 30(b)(6) deposition after targeted initial production. One or more designated persons should testify on matters described with reasonable particularity. Dates, times, location, recording method, and service are **not yet established**.

Proposed date: To be agreed. **Time:** To be agreed. **Platform/location:** To be agreed. **Recording:** Stenographic and any additional agreed lawful method.

Schedule A — Matters for examination

1. Original order intake, field mapping, and transformation of applicant data for order 496623722.

2. Origin and attribution of “NEWANSORBI” and normalization rules for applicant-provided names.

3. Conduct and output of National Sex Offender Database Search 496623723, including source databases and matching.

4. Processing, source verification, and timing of the Santa Clara criminal component completed October 14, 2026.

5. October 13 package review, report generation, version control, release criteria, and October 14 update.

6. History of screening information furnished or accessible to Amazon, including API, portal, and preliminary component events.

7. Processing, classification, investigation, and response concerning the October 14 dispute and complete-file demand.

The topics should be refined after initial production and a reasonable conference on logistics. Do not transmit as an effective deposition notice in its current form.

Certificate and Record of Delivery — Amazon.com Services, LLC

Case 4:26-cv-09249-ASK · BLANK TEMPLATE · NOT A CERTIFICATE OF COMPLETED SERVICE

A. Early Rule 34 delivery — complete only if used before the conference

Under Rule 26(d)(2), I record that on _____ I **delivered** the First Requests for Production to the persons below by the stated method.

- Recipients: _____
- Method and destination: _____
- Documents transmitted: _____
- Actual first Rule 26(f) conference date (date of deemed service): _____

B. Certificate of service — complete only following actual service

I certify that on _____ I **served** the following discovery documents in this action on counsel for Amazon.com Services, LLC by the agreed or otherwise authorized method:

- [ ] First Requests for Production
- [ ] First Interrogatories
- [ ] First Requests for Admission

Recipient counsel: _____

Authorized service method and destination: _____

Proof of transmission or mailing retained at: _____

Executed on _____ at _____, California.

Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

1455 Cat Tail Drive, Stockton, CA 95204 · (209) 801-4442 · bnn.cdl@gmail.com

Certificate and Record of Delivery — Accurate Background, LLC

Case 4:26-cv-09249-ASK · BLANK TEMPLATE · NOT A CERTIFICATE OF COMPLETED SERVICE

A. Early Rule 34 delivery — complete only if used before the conference

Under Rule 26(d)(2), I record that on _____ I **delivered** the First Requests for Production to the persons below by the stated method.

- Recipients: _____
- Method and destination: _____
- Documents transmitted: _____
- Actual first Rule 26(f) conference date (date of deemed service): _____

B. Certificate of service — complete only following actual service

I certify that on _____ I **served** the following discovery documents in this action on counsel for Accurate Background, LLC by the agreed or otherwise authorized method:

- [ ] First Requests for Production
- [ ] First Interrogatories
- [ ] First Requests for Admission

Recipient counsel: _____

Authorized service method and destination: _____

Proof of transmission or mailing retained at: _____

Executed on _____ at _____, California.

Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

1455 Cat Tail Drive, Stockton, CA 95204 · (209) 801-4442 · bnn.cdl@gmail.com